

Fewer notices, or fewer illegalities?

*Testing a public claim about planning enforcement in Malta
against twenty years of annual reports*

THE CLAIM UNDER REVIEW

***“We had times when we issued over 1,000
enforcement notices per year.”***

Johann Buttigieg, Planning Authority CEO, The Malta Independent, 7 September 2025.
Now around 200, which he attributed to fewer illegalities.

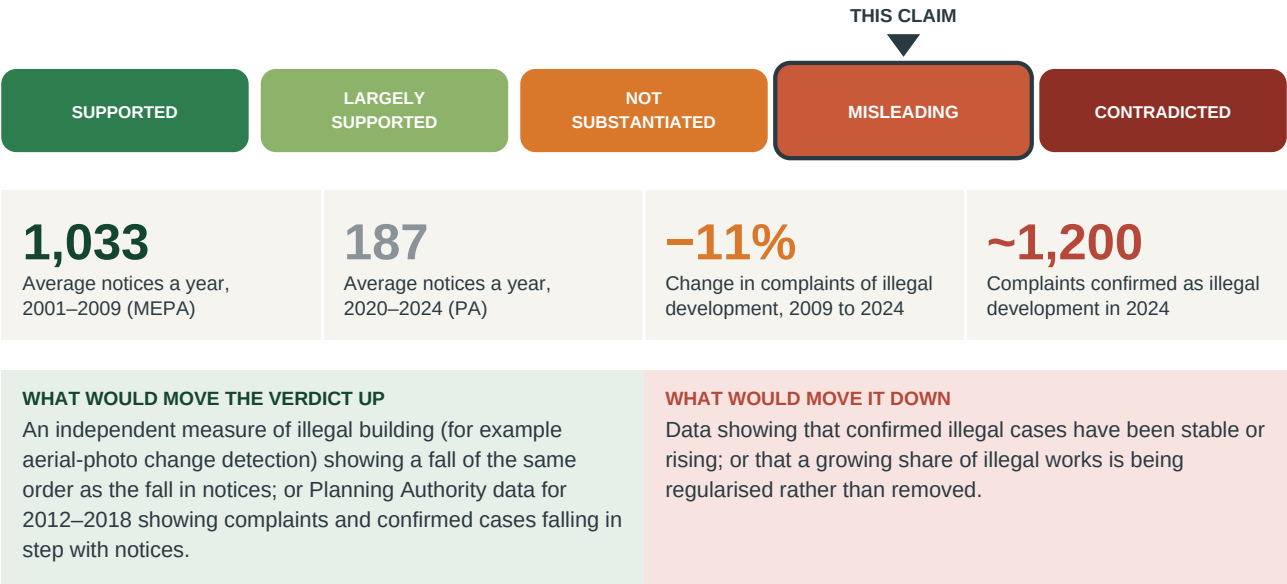
VERDICT: MISLEADING

Accurate figures; the explanation leaves out how cases are now handled

TL;DR

In September 2025 the Planning Authority’s chief executive, Johann Buttigieg, told The Malta Independent: **“We had times when we issued over 1,000 enforcement notices per year.”** The newspaper reports that he said the number had fallen to around 200, **which he put down to there being fewer illegalities:** “people have recognised that it does not make sense to build illegally.” We tested both parts against twenty years of MEPA and Planning Authority annual reports.

- 1 **Both numbers are right.** MEPA issued over 1,000 notices in five of the eight years we could read between 2001 and 2009 (1,369 in 2001). The Planning Authority issued 191 in 2024; the 2020–2024 average is 187.
- 2 **Complaints did not fall the same way.** Notices fell 82%. Complaints of illegal development fell 11% since 2009 (2,701 to 2,411) and 35% since 2004/05; in 2020 they reached 3,313. About half of the 2024 complaints were confirmed as illegal development.
- 3 **What changed is how cases end.** Notices per 100 complaints fell from about 30–40 to 5–10. In 2024, 521 confirmed cases ended in an application to sanction the works and 482 in removal by the owner; 162 led to a notice. The Authority’s own report credits the fall in notices to persuading contraveners first.
- 4 **There is some support for “fewer”.** Confirmed cases appear to have dropped by roughly a third between 2020 and 2024 (about 1,820 to 1,200–1,250). That is far smaller than the fall in notices, and complaints are an imperfect measure of illegal building.
- 5 **Verdict: misleading (moderate confidence).** The figures are accurate, but presenting the fall in notices as a sign of fewer illegalities leaves out the main documented reason: a change in how the Authority handles them.



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1

The claim and what we could verify

The claim comes from an interview with The Malta Independent on Sunday, published on 7 September 2025 [1], which we read in full. The interview took place during public consultation on planning bills and legal notices that would allow some illegal developments to be regularised. We assess the chief executive’s words as reported, not the headline.

What was said	Form	Our access
“We had times when we issued over 1,000 enforcement notices per year.”	Direct quote [1]	Read in full
Now reduced to around 200, “due to there being fewer illegalities”	Newspaper’s paraphrase [1]	Read in full
“I would say that over the last 20 years, people have recognised that it does not make sense to build illegally.”	Direct quote [1]	Read in full
Over 500 enforcement notices pending, over 5,000 cases for direct action; 1,500 illegalities removed by direct action over 30 years; clearing the backlog at the current rate “would take us more than 90 years”.	Direct quotes and paraphrase [1]	Read in full

FAIRNESS NOTE

In the same interview the chief executive acknowledged that the Authority had “struggled” with enforcement and that there were “too many illegalities for the PA to enforce on everything”. A persuasion-first strategy is a recognised approach in regulation (Section 3), and many cases now end with the owner removing or legalising the works without a notice. This check is about whether fewer notices shows fewer illegalities, not about whether the strategy is right.

2

Method

Question. Is the fall from over 1,000 notices a year to about 200 accurate, and does the evidence show that it reflects fewer illegalities?

Evidence. We read the enforcement sections of the MEPA annual reports for 2004 to 2011 and the Planning Authority annual report for 2024 [2–9], which give notices issued and complaints received. For 2019–2023 we used news reports of the Authority’s annual reports and of parliamentary answers [10–13], marked as second-hand; the 2019 complaint count is from the Authority’s 2019 report [17]. Every number was transcribed to *data/cc-014/pa_enforcement_series.csv* and every percentage recomputed with *tools/cc-014-report/calc.py*. We searched Crossref and OpenAlex for studies of planning enforcement in Malta and found none; the regulatory literature [14–16] is context.

Grades. Annual reports and official answers are grade C (official statistics). News reports of them are grade C but second-hand. **Verdicts** follow the five-point scale in Appendix A.

3 What a notice measures

An enforcement notice is something the regulator does: it records the Authority acting on an illegality it has found. The number issued depends on how many illegalities exist, how many are reported or detected, and how the Authority chooses to deal with them. If the Authority settles more cases by other means, notices fall even if illegal building does not. Counting notices as if they measured the underlying problem is the pattern our methodology calls *input as outcome*.

Regulatory research supports both sides of the trade-off. Reviews of environmental enforcement find that inspections and sanctions deter future violations, both by the firm sanctioned and by others [14]. The “responsive regulation” tradition argues that regulators should start with persuasion and escalate only when that fails [15, 16]. Neither body of work treats a fall in sanctions as evidence, on its own, of a fall in violations.

4 What the data show

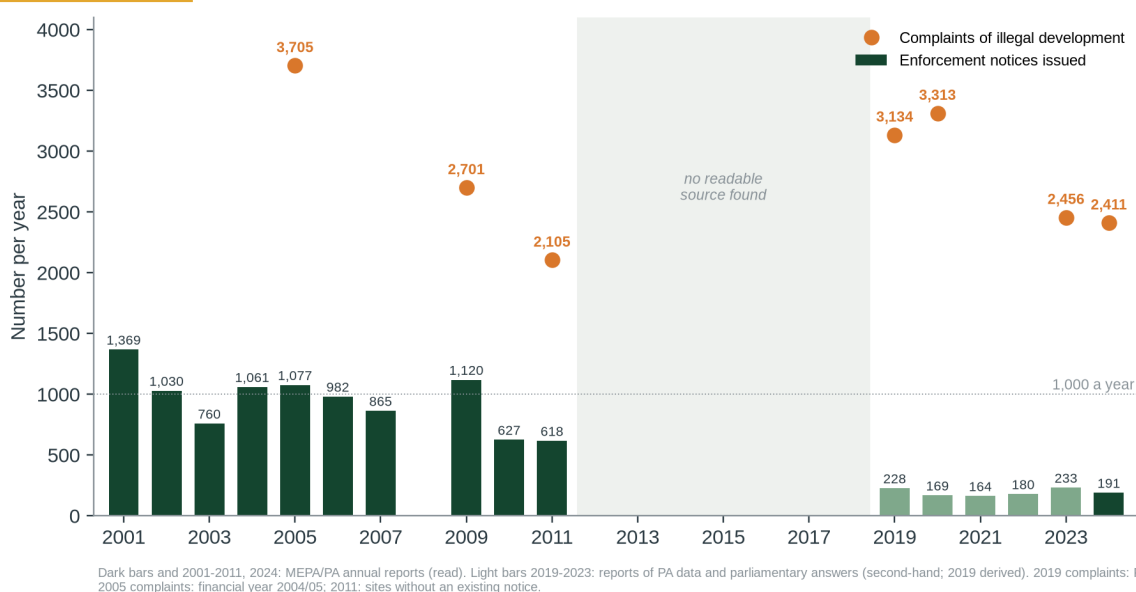


Figure 1. Enforcement notices issued (bars) and complaints of illegal development (dots), 2001–2024. Complaints did not fall in step with notices.

Indicator	Then	Now	Change	Source
Notices a year (average)	1,033 (2001–09)	187 (2020–24)	–82%	[2–9, 10–13]
Complaints of illegal development	2,701 (2009)	2,411 (2024)	–11%	[6, 9]
Complaints, longer run	3,705 (FY 2004/05)	2,411 (2024)	–35%	[3, 9]
Notices per 100 complaints	29–42 (2005–11)	5–10 (2019–24)	about –80%	calculated
Confirmed illegal cases	~1,820 (2020)	~1,200–1,250 (2024)	about –31% to –34%	[9, 10]

All values in `data/cc-014/checks.csv`. 2012–2018 are missing: the 2012 and 2014 MEPA reports are scanned images and later reports are published only on a page-flip site. For 2024 the Authority reports “circa half” of 2,411 complaints as confirmed (about 1,206), but its four outcome categories sum to 1,252 (52%); hence the range.

What happened to 2,411 complaints in 2024 (about half confirmed as illegal development)



Source: Planning Authority Annual Report 2024, pp. 28-30. The four categories are reported separately and may overlap.

Figure 2. Outcomes of the 2024 complaints as reported by the Planning Authority [9]. Most confirmed illegal works ended without a notice: the owner applied to sanction them or removed them.

Reading across the data

- **The headline numbers are accurate.** “Over 1,000 a year” matches 2001, 2002, 2004, 2005 and 2009; “around 200” matches every year from 2019 to 2024.
- **Complaints did not halve, let alone fall by four-fifths.** They were 2,105 in 2011 and 3,313 in 2020, and around 2,400 in 2023 and 2024, even after the Authority stopped accepting anonymous reports [13].
- **The share of cases ending in a notice collapsed.** In 2024 about six times as many confirmed cases ended in a sanctioning application or removal by the owner (521 + 482 = 1,003) as in a notice (162). In 2020, 818 complaints led to a sanctioning application [10].
- **The Authority explains it this way itself.** Its 2024 report attributes the 18% fall in notices that year to a strategy of persuading contraveners to rectify before formal action [9, 13]. MEPA’s 2007 report attributed an earlier fall partly to closer monitoring of works in progress [5].

5 Where the evidence points different ways

Q1 Are there fewer illegalities than in the 2000s?

POSSIBLY SOME; NOT
FOUR-FIFTHS FEWER

EVIDENCE FOR THE CLAIM'S IMPRESSION

Complaints are lower than in 2004/05 (–35%) and confirmed cases fell by about a third between 2020 and 2024. Higher daily fines and the sanctioning route may have changed behaviour, as the chief executive says.

EVIDENCE AGAINST

Complaints in 2024 were only 11% below 2009, and in 2020 (3,313) they were the highest we could read after FY 2004/05 (3,705, when MEPA counted by financial year). About 1,200 complaints a year are still confirmed as illegal development.

WHY THEY DIFFER, AND WHAT IT MEANS HERE

For this claim: a modest fall in reported illegalities is plausible; a fall of the size implied by notices (–82%) is not supported by the Authority’s own figures.

Q2 Why did notices fall?

MAINLY A CHANGE IN
PRACTICE

EVIDENCE FOR THE CLAIM'S IMPRESSION

Fewer new illegalities would mean fewer notices. Owners now more often remove works once contacted, which is the outcome enforcement aims for.

EVIDENCE AGAINST

Notices per complaint fell about five-fold. The Authority’s own report credits persuasion; hundreds of cases a year are closed by applications to legalise the works [9, 10].

WHY THEY DIFFER, AND WHAT IT MEANS HERE

For this claim: the documented explanation is how cases are handled, which the statement does not mention.

Q3 Do complaints measure illegal building?

ONLY PARTLY

EVIDENCE FOR THE CLAIM'S IMPRESSION

Complaints are the main way the Authority learns of illegal works, and confirmation rates (about half to 55%) are reported each year.

EVIDENCE AGAINST

Complaints depend on public vigilance, reporting tools and rules (anonymous reports stopped in 2024). No independent count of illegal building, such as aerial-photo change detection, has been published.

WHY THEY DIFFER, AND WHAT IT MEANS HERE

For this verdict: confidence is moderate because both sides rely on proxies.

6

Testing the claim

Sub-claim	What the evidence shows	Rating
A. “We had times when we issued over 1,000 enforcement notices per year”	1,369 (2001), 1,030 (2002), 1,061 (2004), 1,077 (2005), 1,120 (2009) [2–6].	ACCURATE
B. Now around 200	164–233 a year, 2019–2024; 191 in 2024 [9–12].	ACCURATE
C. The fall is due to fewer illegalities	Complaints fell 11–35% against an 82% fall in notices; notices per complaint fell about five-fold; the Authority attributes the fall to persuasion.	MISLEADING
D. Over 5,000 cases awaiting direct action; over 90 years to clear	5,382 pending notices at end 2021 [11]; 74 closed by direct action in 2020 [10] implies about 73 years. Consistent in size.	BROADLY CONSISTENT
E. 1,500 illegalities removed by direct action in 30 years	No annual series found.	NOT TESTED

7

Verdict and requests for evidence

VERDICT

MISLEADING

Accurate figures; the explanation leaves out the main documented cause. Confidence: moderate. Based on MEPA and Planning Authority annual reports, which can be shown.

Why. (1) Both figures are accurate. (2) Complaints of illegal development fell far less than notices, and about 1,200 complaints a year are still confirmed as illegal. (3) The share of cases ending in a notice fell about five-fold, as more cases ended in applications to legalise the works or in removal after contact, and the Authority’s own 2024 report gives persuasion as the reason. Presenting the fall in notices as evidence of fewer illegalities therefore gives an inaccurate overall impression, which our scale calls *Misleading*.

What this verdict does not say. It does not say that illegal building has increased, that the persuasion-first approach is wrong, or that anyone acted in bad faith. A fuller statement would read: “*We used to issue over 1,000 notices a year; now about 200, because most cases are settled by removal or a sanctioning application before a notice is needed. Complaints are about 2,400 a year and half are still confirmed as illegal.*”

Evidence we are asking for

- ☐ Annual complaints, confirmed illegal cases, notices and outcomes for 2012–2018, to close the gap in the series.
- ☐ Any analysis behind the statement that illegalities have fallen (for example aerial or satellite surveys).

- ☐ How many confirmed cases each year end in a sanctioning permit, and how many of those permits are granted.
- ☐ The source of the figure of 1,500 direct actions over 30 years, by year.

RIGHT OF REPLY

Before wider circulation this draft should be sent to the Planning Authority with a fixed deadline (suggested 14 days). Under our standards a *Misleading* verdict is not published before that deadline passes. Responses will be appended and the verdict revisited.

8**Limitations**

- Complaints and confirmed cases are proxies for illegal building. They depend on public reporting and on Authority rules, which changed (anonymous reports stopped in 2024; a reporting app was introduced earlier).
- Definitions shift: MEPA reported by financial year until about 2006; the 2011 complaint count excludes sites already under a notice; the 2009 figures add the Gozo Office.
- 2019–2023 figures are second-hand (news reports of annual reports and of parliamentary answers), except the 2019 complaint count, read in the Authority’s 2019 report [17]; the 2019 notice count is derived from a reported percentage.
- 2008 and 2012–2018 are missing. A steady decline or a sudden policy change in those years would not change the comparison of endpoints, but would change how it is explained.
- No peer-reviewed study of planning enforcement in Malta was found; the regulatory literature is used for context only and was read as abstracts.

References

- [1] The Malta Independent (7 Sep 2025). CEO will not say PA failed in enforcement duties, but admits it has struggled. Interview with Johann Buttigieg. <https://www.independent.com.mt/articles/2025-09-07/local-news/CEO-will-not-say-PA-failed-in-enforcement-duties-but-admits-it-has-struggled-6736272936>
- [2] MEPA (2004). Annual Report and Accounts 2004: Enforcement Statistics (notices 2001–2004). <https://era.org.mt/wp-content/uploads/2019/05/MEPA-Annual-Report-2004.pdf>
- [3] MEPA (2005). Annual Report and Accounts 2005: table 3; complaints. <https://era.org.mt/wp-content/uploads/2019/05/Annual-Report-2005.pdf>
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- [5] MEPA (2007). Annual Report 2007: Follow up of Stop/Enforcement Notices. <https://era.org.mt/wp-content/uploads/2019/05/MEPA-Annual-Report-2007.pdf>
- [6] MEPA (2009). Annual Report 2009: Enforcement; Gozo Office. <https://era.org.mt/wp-content/uploads/2019/05/Annual-Report-2009.pdf>
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- [8] MEPA (2011). Annual Report 2011: Enforcement Directorate. <https://era.org.mt/wp-content/uploads/2019/05/Annual-Report-2011-Final.pdf>
- [9] Planning Authority (2025). Annual Report 2024: Compliance Enforcement Directorate, pp. 28–30. <https://www.parlament.mt/media/134019/pa-annual-report-2024.pdf>
- [10] MaltaToday (2021). Planning Authority received 9 reports on illegalities each day in 2020. (Report of the PA Annual Report 2020; second-hand ♦.) https://www.maltatoday.com.mt/environment/environment/109955/planning_authority_received_9_reports_on_illegalities_each_day_in_2020
- [11] The Malta Independent (31 Jan 2022). Planning Authority says there are over 5,000 pending enforcement notices. (PA data; second-hand ♦.) <https://www.independent.com.mt/articles/2022-01-31/local-news/Planning-Authority-says-there-are-over-5-000-pending-enforcement-notices-6736240240>
- [12] MaltaToday (2024). Planning Authority yet to collect €674,740 from pending enforcement notices. (Parliamentary answer; second-hand ♦.) https://www.maltatoday.com.mt/news/national/127957/planning_authority_yet_to_collect_674740_from_pending_e

nforcement_notices

- [13] MaltaToday (2025). 2,400 reports of suspected illegal works in 2024. (Report of the PA Annual Report 2024.) https://maltatoday.com.mt/environment/townscapes/134952/2400_reports_of_suspected_illegal_works_in_2024
- [14] Gray W.B., Shimshack J.P. (2011). The effectiveness of environmental monitoring and enforcement: a review of the empirical evidence. *Review of Environmental Economics and Policy* 5(1):3–24. doi:10.1093/reep/req017. (Abstract read.) <https://doi.org/10.1093/reep/req017>
- [15] Gunningham N. (2017). Compliance, deterrence and beyond. In *Compliance and Enforcement of Environmental Law*, Edward Elgar, pp. 63–73. doi:10.4337/9781783477685.iv.4. (Abstract read.) <https://doi.org/10.4337/9781783477685.iv.4>
- [16] Ayres I., Braithwaite J. (1992). *Responsive Regulation*. Oxford University Press. doi:10.1093/oso/9780195070705.001.0001. (Cited via [15] ♦.)
- [17] Planning Authority (2020). Annual Report 2019: Compliance & Enforcement Directorate, pp. 17–18. Read as page images on Issuu. https://issuu.com/planningauthority/docs/annual_report_2019
- [18] MiŻien. Data and calculations: data/cc-014/; tools/cc-014-report/calc.py.

Appendix A: series standards and verdict scale

Every investigation in this series follows the same rules so that verdicts are comparable and challengeable.

Verdict	Meaning
SUPPORTED	Evidence consistently backs the claim as stated.
LARGELY SUPPORTED	Backed by the evidence, with minor caveats that do not change the substance.
NOT SUBSTANTIATED	Stated more strongly than the evidence offered or available allows. May be true in some conditions but has not been shown.
MISLEADING	Omits material facts so that the overall impression is inaccurate, even if individual statements are defensible.
CONTRADICTED	The available evidence points against the claim.

Confidence

High: multiple independent lines of evidence agree. **Moderate:** evidence is relevant but incomplete or indirect. **Low:** evidence is thin, second-hand or conflicting.

Evidence grades

A experiment · B observational study with a control or gradient · C review, guidance or official statistics · D assertion or anecdote. ♦ marks a source known only second-hand.

Standards

- **Quote the speaker, not the headline**, with outlet and date, and link the original where possible.
- **Separate the claim from the evidence offered for it**, and say who made which statement.
- **Grade the evidence** and show differing views side by side where the evidence is unsettled.
- **State what we could not access or verify**, and what would change the verdict either way.
- **Ask for the missing evidence** in specific, answerable requests.
- **Offer a right of reply** before wider circulation and append responses.
- **Correct errors openly** with a version number and change log.
- **Whistle-blow only on evidence:** a verdict of *Misleading* or *Contradicted* requires documents or data that can be shown, not inference.
- **Check every side.** Government, opposition, NGOs and developers are held to the same standard.

Appendix B: revision log

Version	Date	Change
1.0	3 Oct 2026	First issue. Draft pending right of reply from the Planning Authority.
1.1	5 Oct 2026	Corrections: (1) 2020 complaints were called “the highest in the series”; now “the highest we could read after FY 2004/05 (3,705)”. (2) “More than three times as many” cases ending in a sanctioning application or removal as in a notice → “about six times” $((521 + 482) / 162 = 6.2)$. (3) 2019 complaints 3,174 (derived from a news report) → 3,134 (PA Annual Report 2019, p. 17; Figure 1 redrawn) [17]. (4) 2024 confirmed cases ~1,200 → ~1,200–1,250 and the 2020–24 change –34% → –31% to –34%, because the four outcome categories sum to 1,252, more than the “circa half” (1,206) reported. Flyer: “Settled by legalising” → “Applications to legalise” (applications, not permits). Verdict and confidence unchanged.